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Case Number: 25PSCV03352 Hearing Date: September 15, 2026 Dept: G

Defendants ProVest California LLC and David

Mealancon's Motion for Attorney's Fees and Costs

Respondent: NO OPPOSITION

Defendants Lendmark Financial Services, LLC, The

Dunning Law Firm APC, and James MacLeod's Motion for Attorney's Fees and Costs

Respondent: NO OPPOSITION

TENTATIVE

RULING

Defendants

ProVest California LLC and David Mealancon's Motion for Attorney's Fees and Costs is GRANTED, in a reduced amount.

Defendants ProVest California LLC and David Mealancon are AWARDED a total of \$18,904.00.

Defendants

Lendmark Financial Services, LLC, The Dunning Law Firm APC, and James MacLeod's

Motion for Attorney's Fees and Costs is GRANTED in a reduced amount. Defendants Lendmark Financial Services, LLC, The Dunning Law Firm APC, and James MacLeod are AWARDED a total of \$10,141.56.

BACKGROUND

This

is an action under the Rosenthal Act and for abuse of process. On August 29, 2024, defendant James MacLeod

(MacLeod) of defendant The Dunning Law Firm APC (Dunning) allegedly filed a Complaint on behalf of their client defendant Lendmark Financial Services, LLC (Lendmark) in a debt collection action (case no. 24NWLC36833) against plaintiff Stewart Nolan Hall (Hall). Lendmark, MacLeod, and Dunning (collectively, the Lendmark Defendants) allegedly hired defendant ProVest California LLC (ProVest) to serve Hall in the debt collection action, and ProVest allegedly assigned process server defendant David Mealancon (Mealancon) to execute service.

Mealancon allegedly failed to serve Hall but nevertheless completed a proof of service form stating that he did.

On October 15, 2024, MacLeod and Dunning, on behalf of Lendmark, filed Mealancon's proof of service with the court in the debt collection action. On November 25, 2024, the court allegedly issued a default judgment against Hall in the debt collection action. (On December 10, 2024, the court vacated the default judgment in the debt collection action.)

In

December 2024, Hall allegedly entered into an agreement with Lendmark to pay off his original debt, the subject of the debt collection action, in monthly installments. On August 1, 2025, MacLeod and Dunning, on behalf of Lendmark, allegedly served Hall with a renewed request for entry of default in the debt collection action. Hall allegedly continues to make monthly payments to Lendmark according to their alleged agreement.

On September

16, 2025, Hall filed the Complaint in this case. On November 12, 2025, Hall filed the operative Amended Complaint, alleging causes of action for (1) debt collection without service of process, (2) debt collection by false means, (3) debt collection without assignment, and (4) abuse of process.

On

October 6, 2025, the court consolidated the debt collection action with this case.

On

April 7, 2026, the court issued a Judgment in favor of ProVest and Mealancon (collectively, the Process Servers) and against Hall.

On May 15, 2026, the court issued a Judgment in favor of the Lendmark Defendants and against Hall.

On

June 22, 2026, the Process Servers filed a motion for attorney's fees, which is

unopposed.

On July

14, 2026, the Lendmark Defendants filed a motion for attorney's fees, which is unopposed.

This

case is set for an order to show cause re: default judgment (setting date only in non-lead case) and a hearing on the motions on September 15, 2026.

ANALYSIS

All

defendants request attorney's fees because they were prevailing parties on their special motions to strike. For the following reasons, the motions are GRANTED, in a reduced amount.

Legal

Standard

In

trial court litigation, attorney's fees are recoverable if authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).)

"It

is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.) The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) "The reasonable hourly rate is that prevailing in the community for similar work." (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004.) "Under the lodestar method, a party who qualifies for a fee should recover for all hours reasonably spent unless special circumstances would render an award unjust." (Vo v. Las Virgenes Municipal Water Dist. (2000) 79 Cal.App.4th 440, 446.)

“[A]

computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate [attorney’s] fee award.” (Margolin v. Regional Planning Com., supra, 134 Cal.App.3d at 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49, discussing factors relevant to proper attorney’s fees award.) Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (See id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Mountjoy v. Bank of America (2016) 245 Cal.App.4th 266, 271.) “[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable.” (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 98.) “[A]n award of attorney fees may be based on counsel’s declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) “[P]aralegal fees may be awarded as attorney’s fees if the trial court deems it appropriate. . . .” (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.)

Where

a party is challenging the reasonableness of attorney’s fees as excessive that party must “attack the itemized billing[] with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (Premier Medical Management Systems, Inc. v. Cal. Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 563–564.) “[I]t is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence and arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Id. at 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Ibid.)

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“court should defer to the winning lawyer’s professional judgment as to the tasks completed in an action because he won, and might not have, had he been more of a slacker.” (Moreno v. City of Sacramento (9th Cir. 2008) 534 F.3d 1106, 1111.) A losing party cannot litigate tenaciously then be heard to complain about the time spent or tasks performed by the prevailing party in response. (City of Riverside v. Rivera (1986) 477 U.S. 561, 580, fn. 11.) Where a defendant does not produce evidence contradicting the reasonableness of counsel’s hourly rates, the court will deem an attorney’s hourly rate as reasonable. (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 473.)

Discussion

To

decide this motion, the court must determine (1) whether the moving defendants are entitled to attorney’s fees as authorized by contract, statute, or law, and if so, then the court determines the attorney’s fee award by considering (2) the reasonableness of counsel’s rates, (3) the reasonableness of the claimed hours, and (3) the reasonableness of the litigation costs and expenses.

Authorization

of Attorney’s Fees

The

court finds moving defendants are entitled to their attorney’s fees and costs. As stated above, attorney’s fees are recoverable if authorized by contract, statute, or law. (See Code Civ. Proc., § 1033.5, subd.

(a)(10).) The California Anti-SLAPP

Statute provides that “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” (Code Civ. Proc., § 425.16, subd. (c)(1).)

The

Process Servers prevailed on their special motion to strike on March 30, 2026. (See 3/30/2026 Order Re:

Court’s Final Order, pp. 1–2, 5.) The Lendmark

Defendants prevailed on their special motion to strike on May 11, 2026. (See 5/11/2026 Order Re: Court’s Final Ruling, pp. 1–2, 5.)

Therefore, the court finds the moving defendants

are entitled to their attorney's fees and costs.

Reasonableness of Counsel's Rates

The trial court is the ultimate arbiter of what rates are reasonable. (See *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36, stating, "experienced trial judges are the best judges of the value of professional services rendered in their courts.") To determine if an hourly rate is reasonable, courts consider the rates of similar attorneys in the community as well as "the experience, skill, and reputation of the attorney requesting fees." (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009.)

Counsel for the Process Servers request attorney rates between \$275 and \$378 and paralegal rates between \$145 and \$158. (See Ready Decl., ¶ 3.) Counsel for the Lendmark Defendants request an attorney rate of \$350 and a paralegal rate of \$125. (See MacLeod Decl., ¶ 7.) Counsels' declarations provide an overview of their experience and credentials. (See Ready Decl., ¶¶ 2, 4, 6; see also MacLeod Decl., ¶¶ 5–6.) The court considered counsels' declarations, and based on a review of this case compared to other Los Angeles-area counsel in similar cases, the court finds that the charged rates are reasonable. (See *Goglin*, supra, 4 Cal.App5th at 473, finding it appropriate to deem counsel's hourly rates reasonable absent contradicting evidence of reasonableness.)

Therefore, the court does not adjust the rates of the moving defendants' counsel for reasonableness.

Reasonableness of the Claimed Hours

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verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred." (*Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.)

However, counsel bears the burden to demonstrate the reasonableness of charges. (See *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247.) Fees should be denied where the court finds the tasks unreasonable or unnecessary since "padding in the form of inefficient or duplicative efforts is not subject to compensation." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

The

Process Servers' counsel claims 72.7 hours of legal work and provides their itemized fee bill. (See Ready Decl., ¶¶ 16–17; see also Ready Decl., Exh. 1.) The Lendmark Defendants' counsel claims 31.2 hours of legal work and provides their itemized fee bill. (See MacLeod Decl., ¶ 10; see also MacLeod Decl., Exh. A.) Upon review of the invoices, the court finds the hours spent on the special motions to strike appear reasonable. (See Hadley, *supra*, 167 Cal.App.3d at 682, stating, “An award of attorney fees is a matter within the sound discretion of the trial court and absent a manifest abuse of discretion the determination of the trial court will not be disturbed”; see also Moreno, *supra*, 534 F.3d at 1111, instructing court to “defer to the winning lawyer’s professional judgment as to the tasks completed in an action because he won, and might not have, had he been more of a slacker.”)

For

his part, Hall did not attack the moving defendants' itemized billing with evidence that the fees claimed are not appropriate. (See Premier Medical Management Systems, Inc., *supra*, 163 Cal.App.4th at 563–564; see also Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215, stating that “[c]ontentions are waived when a party fails to support them with reasoned argument and citations to authority.”) As a result, Hall does not overcome the *prima facie* evidence of the moving defendants' fee bills.

However,

the Process Servers' counsel and the Lendmark Defendants' counsel both claim anticipated time. The court must base its award of attorney's fees on “actual time expended.” (Civ. Code, § 1794, subd. (d).)

The plain language of Section 1794, subdivision (d) necessarily precludes an award based on speculative fees, including reviewing an opposition that was never filed or drafting a reply that was not necessary.

The

Process Servers' counsel anticipates 17.1 hours of future time in connection with their motion. (See Ready Decl., ¶ 17.) The Lendmark Defendants' counsel anticipates 9.5 hours of future time in connection with their

motion. (See MacLeod Decl., ¶ 9.) The parties do not need to review any opposition or draft a reply, so the court limits the parties to 1.0 hour of future time to prepare for and attend the hearing on these motions. For the Process Servers, the court reduces the award of attorney's fees by 6.0 hours for Marty B. Ready, 9.3 hours for Chelsea J. Gaudet, and 0.8 hours for Callie Jaggard. For the Lendmark Defendants, the court reduces the award of attorney's fees by 7.0 hours for Christina C. MacLeod and 1.5 hours for Nancy Kennealy.

Thus,
for Marty B. Ready, who claimed and substantiated 20.3 hours at a rate of \$350 and who claimed 21.5 hours and substantiated 14.5 hours at a rate of \$378, the court reduces the Process Servers' award by \$2,268.00. For Chelsea J. Gaudet, who claimed and substantiated 17.0 hours at a rate of \$275 and who claimed 9.3 hours and substantiated 0.0 hours at a rate of \$315, the court reduces the Process Servers' award by \$2,929.50. For Callie Jaggard, who claimed 0.8 hours and substantiated 0.0 hours at a rate of \$157.50, the court reduces the Process Servers' award by \$126.00. For Christina C. MacLeod, who claimed 16.9 hours and substantiated 9.9 hours at a rate of \$350, the court reduces the Lendmark Defendants' award by \$2,450.00.
For the Nancy Kennealy, who claimed 3.8 hours and substantiated 2.3 hours at a rate of \$125, the court reduces the Lendmark Defendants' award by \$187.50.

Therefore,
adjusting counsel's hours for reasonableness, the appropriate award of attorney's fees is \$18,904.00 for the Process Servers and \$8,792.50 before adding litigation costs and expenses.

Costs
and Expenses

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prevailing plaintiff has a right to recover all costs and expenses that were reasonably incurred in prosecuting the case.
(See Civ. Code, § 1794, subd. (d).) Allowable costs must be reasonably necessary to conduct the litigation and reasonable in amount. (See Code Civ. Proc., § 1033.5, subds. (c)(2)–(c)(3).)

Apart
from the attorney's fee award, the Process Servers do not request litigation

costs or expenses. (See generally ProVest Mot. P&A.) The Lendmark Defendants requests \$1,349.06 in costs and expenses in the moving brief and the memorandum of costs. (See Lendmark Mot. P&A, pp. 2–3; Memo. of Costs, p. 1.) Based on the memorandum of costs and the expenses described therein, the court finds that all claimed costs were reasonably incurred. (See Code Civ. Proc., § 1033.5)

Therefore, the Process Servers are not entitled to additional costs and expenses, and the Lendmark Defendants are entitled to \$1,349.06 in costs and expenses.

Accordingly, the Process Servers' motion for attorney's fees and costs is GRANTED, in a reduced amount, and the Lendmark Defendants' motion for attorney's fees and costs is GRANTED in a reduced amount. The Process Servers are AWARDED a total of \$18,904.00, and the Lendmark Defendants are AWARDED a total of \$10,141.56.

CONCLUSION

For these reasons, defendants ProVest California LLC and David Mealancon's motion for attorney's fees and costs is GRANTED in a reduced amount. Defendants ProVest California LLC and David Mealancon are AWARDED a total of \$18,904.00.

Defendants

Lendmark Financial Services, LLC, The Dunning Law Firm APC, and James MacLeod's motion for attorney's fees and costs is GRANTED, in a reduced amount. Defendants Lendmark Financial Services, LLC, The Dunning Law Firm APC, and James MacLeod are AWARDED a total of \$10,141.56.